



**Kimani v Kimani (Environment and Land Case 85 of 2018)
[2025] KEELC 436 (KLR) (30 January 2025) (Directions)**

Neutral citation: [2025] KEELC 436 (KLR)

**REPUBLIC OF KENYA
IN THE ENVIRONMENT AND LAND COURT AT NAKURU
ENVIRONMENT AND LAND CASE 85 OF 2018
A OMBWAYO, J
JANUARY 30, 2025**

BETWEEN

ANDREW KIMANI APPLICANT

AND

WANJIKU ERIKANA KIMANI RESPONDENT

DIRECTIONS

1. I have perused the application dated 8th October 2024 together with the filed documents and do find that the same has not been served upon Kirera and Company Advocates the advocate on record for the decree holder. The purpose of order 9 rule 9 of the Civil Procedure Rules 2010 is to ensure that there would be no change of advocate after judgment unless the advocate on record consents or leave of the court is obtained. Leave of the court cannot be obtained unless the advocate on record is heard. The applicant herein has not served the advocate on record and therefore the application cannot be entertained.
2. I do order that the firm of Kirera and company advocates be served with the application within the next 5 days of these direction.
3. Failure to serve within 5 days the application is dismissed with costs. Upon service hearing on 27th February 2025.

SIGNED BY: HON. JUSTICE ANTONY O. OMBWAYO

THE JUDICIARY OF KENYA.

NAKURU ENVIRONMENT AND LAND COURT

ENVIRONMENT AND LAND COURT

DATE: 2025-01-30 04:05:44

